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MOLINA v. REMERO,
ET AL.

CASE NO.: 23NWCV02348

HEARING: Tuesday, August
11, 2026, at 9:30 AM

Defendant LOS ANGELES COUNTY METROPOLITAN TRANSPORTATION
AUTHORITY's Motion for Summary Judgment is DENIED.

Defendant LOS ANGELES
COUNTY METROPOLITAN TRANSPORTATION AUTHORITY's Motion for Summary Adjudication
is GRANTED in part.

Moving Party to give notice.

BACKGROUND

On July 28, 2023, Plaintiff GUILLERMINA MOLINA ("Plaintiff")
filed this action against Defendants JUAN CARLOS GAVINA REMERO; LOS ANGELES
COUNTY METROPOLITAN TRANSPORTATION AUTHORITY; and DOES 1 through 50, inclusive

Plaintiff alleges, in pertinent part, "Plaintiff was a
passenger aboard the BUS, traveling on Central Avenue at or near the
intersection of 68th Street, when the BUS driver forcefully pressed the

accelerator to catch a yellow light, then suddenly slammed on the brakes to avoid colliding into the vehicle making a left turn in front of the bus.

Defendant JUAN CARLOS GAVINA REMERO made a left turn in front of the BUS and caused both vehicles to collide with each other. The collision caused Plaintiff GUILLERMINA MOLINA to jolt forward, then backward, and strike the left side of her face on the metal border between the seats. Plaintiff sustained injuries to her person including but not limited to her face, neck, back, head, right arm, and right shoulder.” (Complaint ¶ 3.)

Plaintiff's Complaint asserts the following causes of action:

(1) Negligence

(2) Negligence

(3) Negligent

Hiring, Training, Supervision, and Retention and

(4) Common

Carrier - Strict Liability

On October 31, 2023, Defendant LOS ANGELES COUNTY METROPOLITAN TRANSPORTATION AUTHORITY filed a Cross-Complaint for Indemnity against Defendant JUAN CARLOS GAVINA REMERO. On May 13, 2026, Defendant LOS ANGELES COUNTY METROPOLITAN TRANSPORTATION AUTHORITY dismissed the Cross-Complaint without prejudice.

On February 20, 2026, Defendant LOS ANGELES COUNTY METROPOLITAN TRANSPORTATION AUTHORITY (“Defendant”) file the instant motion for summary judgment or, in the alterative, summary adjudication.

LEGAL STANDARD

The purpose of a motion for summary judgment “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence

submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

"On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established." (Code Civ. Proc., § 437c(p)(2).) "Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Id.) "If the plaintiff cannot do so, summary judgment should be granted." (Avivi v. Centro Medico Urgente Med. Ctr. (2008) 159 Cal.App.4th 463, 467.)

"When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment." (Avivi, supra, 159 Cal.App.4th at p. 467; see also Code Civ. Proc., § 437c, subd. (c).)

DISCUSSION

Negligence

Defendants move for summary judgment on the ground that Defendants are not liable for Plaintiff's injuries because Defendant's Driver Marisol Arias encountered a sudden emergency. Defendant further argues Plaintiff cannot establish Defendant breached its duty or was the proximate cause of the Subject Incident.

The California Supreme Court explains this doctrine as follows:

"[A] person who, without negligence on his part, is suddenly and unexpectedly confronted with peril, arising from either the actual presence, or the appearance, of imminent danger to himself or to others, is not expected nor required to use the same judgment and prudence that is required of him in the exercise of ordinary care in the calmer and more deliberate moments." (Leo v. Dunham (1953) 41 Cal.2d 712, 714.)

The affirmative defense of the sudden emergency doctrine is set forth in CACI No. 452: "[Name of plaintiff/defendant] claims that [he/she/nonbinary pronoun] was not negligent because [he/she/nonbinary pronoun] acted with reasonable care in an emergency situation. [Name of plaintiff/defendant] was not negligent if [he/she/nonbinary pronoun] proves all of the following: [¶] 1. That there was a sudden and unexpected emergency situation in which someone was in actual or apparent danger of immediate injury; [¶] 2. That [name of plaintiff/defendant] did not cause the emergency; and [¶] 3. That [name of plaintiff/defendant] acted as a reasonably careful person would have acted in similar circumstances, even if it appears later that a different course of action would have been safer."

However, the doctrine does not apply where the emergency is created by the actor's own negligence. (Vedder v. Bireley (1928) 92 Cal.App. 52, 60.) Whether an actor is free from negligence up to the time of the emergency is generally a question of fact for the jury. (Damele v. Mack Trucks, Inc. (1990) 219 Cal.App.3d 29, 37.)

Defendant presented the following facts to support the application of the sudden emergency doctrine:

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The subject MTA bus which Marisol Arias was operating was traveling northbound on Central Avenue through the Subject Intersection on a green light when another motor vehicle being driven by Defendant Remero, who was traveling southbound on Central Avenue, suddenly and without warning [or signaling] made a left-hand turn from the left turn pocket directly in front of the subject MTA bus Marisol Arias was operating. (UMF No. 40.)

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Prior to the Subject Incident, Marisol Arias did not rush or accelerate the subject MTA bus quickly so as to make it through the Subject Intersection before the traffic light turned yellow, but instead, she accelerated at a normal startup rate of speed while moving through the Subject Intersection and was not exceeding the posted speed limit at the time of the Subject Incident. (UMF No. 42.)

The Subject Incident occurred so fast that Marisol Arias did not have time to make any evasion maneuvers to avoid the Subject Incident, including using the horn located on the MTA bus. (UMF No. 44.)

Marisol Arias was, however, able to apply the brakes on the subject MTA bus as hard as she could prior to the Subject Incident, but was unable to avoid the motor vehicle driven by Defendant Remero. (UMF No. 45.)

Prior to the Subject Incident, Marisol Arias was not inattentive and was watching the traffic conditions around her. (UMF No. 46.)

Unfortunately, and due to the sudden and unexpected left-hand turn of Defendant Remero's vehicle directly in front of the MTA bus, Marisol Arias was unable to avoid Defendant Remero's vehicle. (UMF No. 47.)

Defendant met its initial burden to show there is no triable issue of material fact as to Plaintiff's Negligence Claim and that the Sudden Emergency Doctrine bars Plaintiff's claim.

In response, Plaintiff offers Robert Berkstresser's Declaration. Mr. Berkstresser is an expert in the field of charter, transit, and school bus operations with over 50 years of bus transportation experience. (Berkstresser Declaration ¶ 1.) Mr. Berkstresser declared the following:

The crash in this case was avoidable had Ms.

Arias been trained and followed training to prevent crashes. (Berkstresser Decl., ¶ 25.)

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It is clear from the video footage that Ms.

Arias had ample time to see the other driver in the left turn lane not coming to a complete stop or slowing much and begin the execution of his left turn in front of the MTA bus. (Berkstresser Decl., ¶ 27.)

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It is clear from the video footage that Ms.

Arias could have, and should have, but failed to keep at the bus stop to prevent the crash with the other vehicle. (Berkstresser Decl., ¶ 28.)

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Arias could have, and should have, but failed to keep at the bus stop on a yellow light to prevent the crash with the other vehicle. (Berkstresser Decl., ¶ 29.)

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Had Ms. Arias kept the bus at the bus stop as required by her standard of care, the crash would not have happened. (Berkstresser Decl., ¶ 31.)

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Had Ms. Arias stopped the forward movement of the bus as required of her by the standard of care, the crash would not have happened. (Berkstresser Decl., ¶ 32.)

The Court begins its discussion with the sudden emergency doctrine. In discussing the sudden emergency doctrine, Defendant cites Shriver, wherein the court found the sudden emergency doctrine applied where a truck driver slammed on his brakes to avoid an unexpected collision. (Shriver v. Laramie (2018) 24 Cal.App.5th 395, 397.) In Shriver, another driver suddenly cut off defendant truck driver and thus, defendant truck driver had to apply his brakes to avoid the collision. (Ibid.) The court rejected appellant's argument that defendant truck driver's failure to yield to traffic fell below the standard of care. (Id. at 402.) In doing so, the court found appellant was bound to his testimony that (1) defendant truck driver

reduced his speed 15 to 20 percent and that (2) defendant truck driver could not have safely moved into the left travel lane. (Id. at 403.) In other words, the court found that the evidence did not support the expert's conclusion that the defendant truck driver's failure to yield fell below the standard of care.

Defendant highlights the following passage wherein the court held: "A freeway driver with the right of way is not required to anticipate an act of road rage that unexpectedly causes merging traffic in front of him to come to almost a dead stop." (Id. at 397.)

Shriver's blanket conclusion on right of way is distinguishable from the instant case because Mr. Arias is not an ordinary "freeway driver." No, instead Ms. Arias is a common carrier driver held to a heightened standard of care.

Civil Code Section 2100 provides "A carrier of persons for reward must use the utmost care and diligence for their safe carriage, must provide everything necessary for that purpose, and must exercise that end to a reasonable degree of skill."

Simply put, Ms. Arias is held to a heightened standard than that of the defendant truck driver in Shriver.

Notably, however, the court in Shriver rejected appellant's expert testimony because the undisputed facts showed there was nothing defendant truck driver could have done to avoid the accident. The Court finds that discussion instructive here.

Some of Mr. Berkstresser's conclusions are unsupported or contradicted by the video and photo evidence. The Court reviewed screenshots and video evidence leading up to the Subject Incident. Therein, the evidence shows Ms. Arias entered the intersection before Defendant Remero made a dangerous left turn. (Defense Exhibit B.) Moreover, Mr. Berkstresser repeatedly states that the light was yellow and that Ms. Arias accelerated to catch it. However, the video footage shows that the light was green as Ms. Arias approached it. (Defense Exhibit A.)

Thus, Mr. Berkstresser's conclusion that Ms. Arias should have but failed to "keep at the bus stop on a yellow light to prevent the crash

with the other vehicle.” (Berkstresser Decl., ¶ 29.) is unsupported by the evidence. The Court does not believe Plaintiff’s theory that Ms. Arias sped up the bus to catch a yellow light.

Instead, the Court focuses on Plaintiff’s theory that Ms. Arias had ample time to see Mr. Remero coming from the left turn lane and thus, Ms. Arias had time to avoid the subject incident.

In Jacob, the court held that it was a jury question whether a bus driver was free from negligence in not seeing ladders in time to avoid hitting them or suddenly stopping. (Jacob v. New System Transit Lines (1956) 140 Cal.App.2d 357, 362.) The court found that, “ the fact that in broad daylight the bus ran into the ladders on the truck under the circumstances here amply supports an implied finding that defendants did not exercise that degree of care, even if the negligence of Velasco was also a proximate cause of the accident.” (Id. at 361.) In Jacob, it was obvious that it was for the jury to determine from all the evidence whether the ladders were ‘clearly visible’ to the bus driver in time for her to have avoided injuring plaintiff. (Id. 364.)

Here, Mr. Berkstresser’s review of the video determined that Ms. Arias had ample time to see the other driver in the left turn lane not coming to a complete stop or slowing much and begin the execution of his left turn in front of the MTA bus. (Berkstresser Decl., ¶ 27.) Furthermore, Mr. Berkstresser opined that the standard of care required Ms. Arias to detect early signs of danger to prevent injury to Plaintiff. (Berkstresser Decl., ¶ 30.) Indeed, Mr. Berkstresser states, Ms. Arias was required to identify the vehicle in the left turn lane as a hazard, predict a continuous move making the left turn, decide on a course of action, and execute the plan. (Berkstresser Decl., ¶ 9.) Lastly, Mr. Berkstresser declares that, had Ms. Arias stopped the forward movement of the bus as required by her standard of care, the crash would not have happened. (Berkstresser Decl., ¶ 32.)

Coversley, Defendant contends that the Subject Incident occurred so fast that Marisol Arias did not have time to make any evasion maneuvers to avoid the Subject Incident, including using the horn located on the MTA bus. (UMF No. 44).

The Court notes that this is a close issue. Indeed, in viewing the evidence in the light most favorable to Plaintiff, the Court holds triable

issues remain as to whether Ms. Arias was negligent and whether the sudden emergency doctrine applies.

As to negligence, the Court finds it is for the jury to determine based on the evidence whether Ms. Arias had ample time to see Mr. Remero turning towards her and whether Mr. Arias had time to make evasive maneuvers to avoid the Subject Incident. Accordingly, as to the sudden emergency doctrine, it is for the jury to decide whether Ms. Arias acted as a reasonable person under the circumstances. Lastly, there remains a triable issue on whether Mr. Arias actions or inaction caused the crash.

Thus, Summary Adjudication is DENIED as to Plaintiff's Negligence Claim.

Negligent Hiring, Training, Supervision, and Retention

"[A]n employer can be liable to a third person for negligently hiring, supervising, or retaining an unfit employee." (Doe v. Capital Cities (1996) 50 Cal.App.4th 1038, 1054.)

To establish a cause of action for negligent hiring, retention, or supervision, a plaintiff must show that the employer knew or should have known that hiring the employee created a particular risk or hazard and that particular harm occurs. (See Z.V. v. County of Riverside (2015) 238 Cal.App.4th 889, 902; Doe, supra, 50 Cal.App.4th at 1054.)

Defendant provided the following undisputed fact to show there is no evidence that Defendant knew or should have known that hiring driver Marisol Arias created a particular risk or hazard:

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Prior to the Subject Incident, Marisol Arias had undergone extensive training with Defendant MTA as to the safe operation of an MTA bus and had never been involved in a prior bus v. motor vehicle accident before the Subject Incident or before being hired by Defendant LACMTA. (UMF No. 48.)

Plaintiff admits to this fact and fails to offer any evidence that Defendant knew or should have known Ms. Arias was unfit or incompetent to be a bus driver. Indeed, it is undisputed that Ms. Arias had

never been involved in a prior motor vehicle incident.

Summary Adjudication is GRANTED as to Plaintiff's
Negligent Hiring, Training, Supervision, and Retention Claim.

Common Carrier – Strict Liability Civil Code § 2100

Civil Code § 2100 provides that “A carrier of persons for reward must use the utmost care and diligence for their safe carriage, must provide everything necessary for that purpose, and must exercise to that end a reasonable degree of skill.” The requirement to use utmost care and diligence for the safety of passengers extends to the protection of passengers from third parties, including other passengers, when the common carrier knows or should know that an assault is about to occur. (*City and County of San Francisco v. Superior Court*, (1994) 31 Cal.App.4th 45, 48 (San Francisco).)

Civil Code § 2100, which imposes the standard of care for common carriers, does apply to government entities and creates a mandatory duty. The California Supreme Court confronted this very issue in *Lopez v. Southern Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 791 and stated the following: “In summary, we hold that Civil Code section 2100 imposes upon all common carriers—public or private—a duty of utmost care and diligence to protect their passengers.” (Emphasis added.)

However, Civil Code § 2100 does not impose strict liability on common carriers. Indeed, as noted in *Lopez*, “carriers are not insurers of their passenger’s safety and will not be automatically liable, regardless of the circumstances, for any injury suffered by a passenger at the hands of a fellow passenger. Rather, a carrier is liable for injuries resulting from an assault by one passenger upon another only where, in the exercise of the required degree of care, the carrier has or should have knowledge from which it may reasonably be apprehended that an assault on a passenger may occur and has the ability in the exercise of that degree of care to prevent the injury.” (Ibid.)

While *Lopez* focuses on an assault by one passenger onto another, its discussion on Civil Code § 2100 is instructive. Indeed, Civil Code § 2100 bestows a duty of utmost care on common carriers, a heightened standard of care. However, Civil Code § 2100 does not hold a carrier

shall be strictly liable.

Regardless, although Plaintiff classifies the Fourth Cause of Action as a “strict liability” action, Plaintiff is not claiming Defendant can be strictly liable.

Instead, Plaintiff alleges, “Defendants, as carriers of persons for reward, had a statutory duty to use the utmost care and diligence for their safe carriage and must provide everything necessary for that purpose. Cal. Civ. Code § 2101.” (Complaint ¶ 56.) On or about July 12, 2022, Defendant breached the statutory duties set forth in California Civil Code §§ 2100 et seq in so far as it failed to warn and negligently maintained and/or operated its BUS causing injury to Plaintiff. (Complaint ¶ 59.)

Defendant’s Motion for Summary Adjudication is DENIED as to Plaintiff’s Common Carrier Claim given that Lopez’s holding that Civil Code § 2100 applies to government entities.

CONCLUSION

Defendant’s Motion for Summary Judgment is DENIED.

Defendant’s Motion for Summary Adjudication is DENIED as to Plaintiff’s Negligence and Common Carrier – Strict Liability Causes of Action.

Defendant’s Motion for Summary Adjudication is GRANTED as to Plaintiff’s Negligent Hiring, Training, Supervision, and Retention Cause of Action.

Defendant’s Request for Judicial Notice is GRANTED. (Evid. Code § 452(d).)

The Court issues the following rulings on Defendant’s Evidentiary Objections:

As to Mark Ryan’s Declaration, Objections Nos. 1-3 are OVERRULED.

As to Robert Berkstresser’s Declaration, Objections Nos. 1-18 are OVERRULED.